



CHAPTER 75.

An Act to provide for the limitation of the Price of Coal. A.D. 1915.
[29th July 1915.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) Coal at the pit's mouth shall not be sold or offered for sale directly or indirectly by the owner of the coal or on his behalf at a price exceeding by more than the standard amount per ton the price of coal of the same description, sold in similar quantities, and under similar conditions affecting the sale, at the pit's mouth at the same coal mine on the corresponding date (or as near thereto as, having regard to the course of business, may be practicable) in the twelve months ended the thirtieth day of June nineteen hundred and fourteen (in this Act referred to as the corresponding price).

Limitation of price of coal at the pit's mouth.

(2) The standard amount shall be four shillings: Provided that the Board of Trade may, by order, if they are satisfied, as respects any class of coal mines specified in the order or the coal mines in any district so specified, that owing to special circumstances affecting those mines the standard amount of four shillings should be increased, substitute for that amount such higher sum as they may think just in the circumstances; and as respects those mines this Act shall have effect as if the higher sum so substituted were the standard amount.

(3) If any person sells or offers for sale any coal in contravention of this section he shall be liable on summary conviction to a fine not exceeding one hundred pounds or, at the discretion of the court, to a fine not exceeding treble the amount by which the sum paid or payable for any coal sold by him in contravention of this section exceeds the maximum sum which would have been paid or payable for the coal if there had been no contravention of this section: Provided that a person shall

A.D. 1915. — not be liable to a fine under this provision if he shows that he had reasonable grounds to believe that he was not committing an offence.

(4) This section shall apply (both as respects the price at which coal is sold or offered for sale and as respects the corresponding price) to a case where the owner of coal at the pit's mouth has sold or offered to sell that coal at a price which includes the cost of railway or other incidental services besides the actual value of the coal at the pit's mouth, as if he had sold or offered to sell it at the pit's mouth at that price reduced by an amount representing the cost of those services.

(5) It is hereby declared that nothing in this section shall affect the rights or obligations of any person under any contract or agreement for the sale of coal except, in cases where the sale is in contravention of this section, as respects so much of the price as exceeds the maximum price which could have been charged for the coal if there had been no contravention of this section.

Limitation of
charge for
waggon hire.

2.—(1) Where coal is conveyed from the pit's mouth over any railway in trucks not belonging to a railway company, the seller of such coal shall not be entitled to charge for the use of the trucks any sum exceeding by more than 50 per cent. the sum which the railway company conveying the coal was actually charging for the provision of trucks at the commencement of this Act.

(2) If any person charges or attempts to charge for the use of any trucks in contravention of this section, he shall be liable on summary conviction to a fine not exceeding one hundred pounds.

Decision of
question by
the Board of
Trade.

3.—(1) If in any proceedings any question is raised as to the corresponding price of any coal, or as to the cost of railway or other incidental services, or as to the sums charged for the use or provision of trucks, the court shall refer the question for determination by the Board of Trade, and the decision of the Board shall be final and conclusive for all purposes.

(2) If for any reason there are not adequate data at any coal mine from which to ascertain, in accordance with the foregoing provisions of this Act, the corresponding price at that mine, the Board of Trade may fix that price having regard to data afforded from sales of coal at other mines.

(3) The Board of Trade may require the owner of any coal mine to furnish such information as appears to them necessary for the purpose of carrying into effect this Act; and if any person refuses to furnish any such information when so required, or furnishes information which is false in any material particular, he shall be liable on summary conviction to a fine not exceeding one hundred pounds.

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(4) The Board of Trade Arbitrations, &c. Act, 1874, shall apply as if this Act were a special Act within the meaning of the first-mentioned Act. 37 & 38 Vict.
c. 40.

4.—(1) This Act shall not apply to any sale of coal for export, or to any sale of coal for the manufacture of patent fuel for export, or to any sale of coal to be used on any ship. Application,
short title, and
duration.

(2) This Act shall not apply to the sale of coal supplied in pursuance of a contract made before the commencement of this Act:

Provided that where any contract has been made on or after the first day of April, nineteen hundred and fifteen, and before the commencement of this Act, for the sale of coal by the owner thereof at the pit's mouth, coal delivered under that contract after the expiration of the period fixed under this provision, and shown to be excepted coal within the meaning of this provision, shall, if the other party to the contract within two months after the commencement of this Act gives notice in writing to that effect to the owner of the coal at the pit's mouth, be deemed for the purposes of this Act to be sold at the time of the delivery thereof.

If, in consequence of this provision, the price to be paid by any person to whom coal is delivered is reduced by any amount, the price to be paid by any person to whom the coal is delivered in pursuance of any subsidiary contract shall be reduced by an equivalent amount; and any purchaser under any such subsidiary contract shall have the same right to give notice to the owner of the coal at the pit's mouth as the person who has made the original contract with that owner, and any person who has sold the coal shall, if required, communicate to the purchaser the name of the person from whom the coal has been bought.

For the purpose of this provision "excepted coal" means coal supplied for domestic or household purposes to any person and coal supplied for any purpose to any local authority, or to any undertakers supplying gas, water, or electricity in any locality in pursuance of authority given by an Act of Parliament, or by an Order confirmed by, or having the effect of, an Act.

The period fixed under this provision shall be a period of three months after the commencement of this Act, but the owner of the coal at the pit's mouth may apply to the Board of Trade for an extension of that period and the Board of Trade may, if they are satisfied that there are special reasons in the case in question for such an extension, extend the period for such time as they think just under the circumstances, and the period as so extended shall in such a case be the period fixed under this provision.

(3) This Act shall not apply to coal raised in Ireland.

[CH. 75.]

Price of Coal (Limitation)
Act, 1915.

[5 & 6 GEO. 5.]

A.D. 1915. (4) This Act may be cited as the Price of Coal (Limitation)
— Act, 1915.

(5) This Act shall have effect during the continuance of
the present war and a period of six months thereafter.

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.